

DECISIONS · 26 OCT 2001

Antibes Commercial Court judgment — SARL Les Pins

TYPE	COURT	DATE	PARTIES
Court decision	The Antibes Commercial Court	26 Oct 2001	From the franchisee's companies

SUMMARY SHEET

Compulsory liquidation of SARL Les Pins — Antibes Commercial Court · 26 October 2001

Overview: judgment of the first chamber of the Antibes Commercial Court, delivered on the declaration of cessation of payments of SARL Les Pins (food service, Juan-les-Pins), filed by its manager Bernard Collorafi.

Key points

On 23 October 2001, Bernard Collorafi, manager, filed the company's declaration of cessation of payments. After appearance and argument at the hearing of 24 October, the court finds that the recovery of the business is manifestly impossible and that the applicant requests liquidation. Ruling by judgment after hearing both parties and at first instance, having regard to article L. 622-1 of the Commercial Code, it records the cessation of payments and directly opens compulsory liquidation proceedings.

- Date of cessation of payments provisionally set at 26 April 2000.
- Supervising judge: Mrs Petit; substitute: Mr Salon.
- Liquidator: Maître Gilles Gauthier (Sophia Antipolis).
- Filing of the list of claims within ten months.

Significance

This decision ends the operation of one of the franchisee's companies and marks, at the judicial level, the economic outcome of the conflict with McDonald's for this entity.

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Source: bernardcollorafi.org/en/documents/judgment-antibes-commercial-court-liquidation-sarl-les-pins-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.